

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: August 3, 2026

Time: 2:00 PM

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1	Bui v. Elliot	Before the Court at present is the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Moving Defendants"). The Motion is GRANTED. The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that

personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].)

When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court's jurisdiction over the defendant. (*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991-992.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate" and "**cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts.**" (*Swenberg v. dmarcian, Inc.* (2001) 68 Cal.App.5th 280, 291; *DVI, Inc. v. Superior Ct.* (2002) 104 Cal.App.4th 1080, 1091 ("**An unverified complaint has no evidentiary value in meeting plaintiff's burden of proving minimum contacts.**")

Plaintiff's declaration filed with the Opposition (at ROA 73) fails to meet Plaintiff's burden here. He conclusively asserts that he was employed by "Quintessentially (UK) Limited" in Los Angeles, but offers no context for that assertion and no supporting evidence. He asserts that he was paid through various entities but "the source of the funds was always nominally from a Quintessentially bank account," without presenting any foundation for those assertions or supporting evidence. In sum, Plaintiff has not provided one paystub, piece of correspondence, company report, termination notice, etc., suggesting he was employed by any of the Moving Defendants, let alone all of them.

Plaintiff has thus failed to meet his burden here.

In contrast, Moving Defendants have presented evidence to support their claim that there is no basis to assert personal jurisdiction over them here. They assert that they are all UK entities based outside of the U.S., who do not have offices or employees in California, and they assert that their records do not show that Plaintiff was ever employed by any of them. (See Drummond, Wilt, and Ellis Decls., at ROAs 31 and 79.)

Plaintiff asserts that he should be allowed to conduct discovery to seek facts to support personal jurisdiction as to the Moving Defendants. But Plaintiff has failed to identify any specific areas of inquiry he would pursue, what specific discovery efforts have been made to date, or what facts he might obtain through discovery that

		would support specific jurisdiction as to these Moving Defendants. That request is therefore DENIED. The Motion is therefore GRANTED. Moving Defendants are dismissed from the action, without prejudice, pursuant to C.C.P. § 418.10 and C.C.P. § 581(h). The Requests for Judicial Notice presented by both sides (ROAs 31, 69 and 79) are GRANTED under Ev. Code §452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Counsel for Moving Defendants to give notice of this ruling.
2	Bui v. Elliot	Before the Court at present is the "Motion to Dismiss" filed on 5/18/26 by Specially Appearing Defendants "Quintessentially (UK) Limited, a private UK limited company; Quintessentially Retail Limited, a private UK limited company; Quintessentially Aviation Limited, a private UK limited company; Quintessentially Covered Limited, a private UK limited company; Quintessentially Gifts Limited, a private UK limited company; Quintessentially Education Limited, a private UK limited company; Lifestyle Concierge Management Limited, a private UK limited company; Quintessentially Communications Limited, a private UK limited company; Q Worldwide Limited, a private UK limited company; C.J. Leigh (Holdings) Limited, a private UK limited company; Quintessentially Villas Limited, a private UK limited company; Quintessentially Media Limited, a private UK limited company; Quintessentially Driven Limited, a private UK limited company; Quintessentially & Co. Limited, a private UK limited company; and Quintessentially Travel Limited, a private UK limited company" (collectively here, the "Moving Defendants"). The Motion is GRANTED. The Motion seeks relief under C.C.P. § 418.10, and is thus functionally a Motion to Quash based on personal jurisdiction. A Motion to Quash is the appropriate mechanism to assert that personal jurisdiction is lacking. (C.C.P. §418.10(a)(1) ["A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her ..."].) But this Motion is effectively also a motion to dismiss, as if such motion is granted, the court may dismiss the action without prejudice as to those defendants. (C.C.P. § 581(h) ["The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10."].) When a defendant challenges personal jurisdiction on a motion to quash, the burden of proof is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the